

SCH. 2 (2) The amendments set out in the Schedule to the Remuneration of Teachers (Further Education) Amending Order 1962.

3. Report of the Committee on Scales of Salaries for the Teaching Staff of Farm Institutes and for Teachers of Agricultural (including Horticultural) Subjects, England and Wales, 1961.

Section 1.

SCHEDULE 3

EXISTING ORDERS

1. The Remuneration of Teachers (Primary and Secondary Schools) Order 1961, and the Remuneration of Teachers (Primary and Secondary Schools) Amending Order 1962.

2. The Remuneration of Teachers (Further Education) Order 1961, and the Remuneration of Teachers (Further Education) Amending Order 1962.

3. The Remuneration of Teachers (Farm Institutes) Order 1961.



1963 CHAPTER 21

Education (Scotland) Act 1963

ARRANGEMENT OF SECTIONS

Section

1. Establishment of board to conduct examinations, etc.
2. Scope of regulations as to teachers' salaries.
3. Financing of pensions for widows, etc., of teachers.
4. Membership of education committees and sub-committees.
5. Expenses.
6. Citation, construction and extent.

An Act to provide for the establishment of a board in Scotland for the purpose of discharging certain functions relating to examinations for pupils receiving secondary education and others; to amend the provisions of the Education (Scotland) Act 1962 with respect to the scope of regulations prescribing scales of salary for teachers and to the provision of pensions for widows, widowers, children and dependants of teachers; to amend certain provisions of the Local Government (Scotland) Act 1947 relating to membership of education committees and of sub-committees thereof; and for purposes connected with the matters aforesaid.

[10th July 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) There shall be a board (hereafter in this section referred to as “the Board”) for the following purposes, that is to say—

Establishment of board to conduct examinations, etc.

- (a) conducting examinations for the award of certificates relating to secondary education and awarding such certificates ;
- (b) advising the Secretary of State on matters relating to examinations for pupils receiving secondary education ;
- (c) such other purposes relating to examinations as may be specified in regulations under this section.

(2) Regulations shall be made under this section by the Secretary of State, and such regulations shall confer on the Board such powers, and impose on them such duties, as appear to the Secretary of State to be necessary or desirable for the purposes referred to in subsection (1) of this section and may empower the Secretary of State to give to the Board such directions as to the discharge by them of their functions as appear to him to be expedient.

(3) Regulations under this section shall make provision with respect to the membership of the Board and shall ensure that not less than four-fifths of the members of the Board are appointed by the Secretary of State from amongst persons nominated by, or by bodies appearing to the Secretary of State to represent the interests of, the universities of Scotland, education authorities, governing bodies of central institutions, governing bodies of colleges of education, directors of education and teachers employed in educational establishments.

(4) Regulations under this section may—

- (a) provide that the Board shall be a body corporate with perpetual succession and a common seal ;
- (b) make provision with respect to the procedure of the Board and the conduct of their business ;
- (c) make provision with respect to the financial transactions of the Board, including provision for the keeping by the Board of proper accounts and for the auditing of such accounts ;
- (d) provide for the payment by the Board to the members of the Board or of any committee or sub-committee thereof of travelling, subsistence and other allowances ;
- (e) provide that the Board may appoint officers, servants and agents on such terms as to remuneration, pensions

or otherwise as the Board may, with the approval of the Secretary of State, determine ;

- (f) provide that the Board shall make an annual report to the Secretary of State on the exercise by them of their functions, and that the Secretary of State shall lay a copy of the report before each House of Parliament ;
- (g) contain such consequential, ancillary and incidental provisions as appear to the Secretary of State to be necessary or desirable for the purposes of the regulations.

(5) Every education authority shall, at such times as may be fixed by the Secretary of State, contribute to the funds of the Board such sums as may be fixed by him after consultation with such bodies representative of local authorities as appear to him to be concerned, and the said contributions shall be applied by the Board towards meeting their expenses.

(6) The Secretary of State may from time to time make grants to the Board which shall be applied by them towards meeting their expenses.

Scope of regulations as to teachers' salaries.

10 & 11 Eliz. 2, c. 47.

2.—(1) The power conferred on the Secretary of State by section 83 of the Education (Scotland) Act 1962 to make regulations prescribing scales of salary payable by education authorities to teachers appointed by them shall include, and shall be deemed always to have included, a power to include in those regulations provisions empowering the Secretary of State, in such circumstances and subject to such conditions as may be specified in the regulations, to direct that the regulations shall apply in respect of a particular teacher, or of a particular class of teachers, or of all or any of the teachers in a particular educational establishment, or of the holder for the time being of a particular teaching appointment, subject to such modifications as may be specified in the direction, and to amend or revoke any direction so given, and requiring education authorities to give effect to any such direction, whether as originally given or as amended as aforesaid.

(2) Regulations made under the said section 83 shall prescribe the date from which those regulations are to have effect, and different dates may be prescribed for different provisions of the regulations, and any date so prescribed may be a date earlier than the date on which the regulations are made:

Provided that—

- (a) where in making the regulations the Secretary of State has had regard to recommendations made by any council or other body constituted under subsection (4) of the said section 83, any date so prescribed shall not be earlier than the date on which recommendations

to which he has had regard as aforesaid were first received by the Secretary of State, and

- (b) so much of any regulations as provides that any provision thereof is to have effect from a date prior to the making of the regulations shall not place any teacher affected by them in a worse position than he would have been in if the regulations had been made to have effect only from the date of the making thereof.

3.—(1) In paragraph 20 of Schedule 3 to the Education (Scotland) Act 1962 (which sets out provisions regarding pensions for widows, widowers, children and dependants of teachers to which the Teachers (Superannuation) Regulations may give effect, including provisions for the surrender or repayment in exchange for the said pensions of certain sums payable or paid to or in respect of teachers), for the words from “Provision may be made for the surrender or repayment” to the words “the carrying out of the purposes of this paragraph” there shall be substituted the following words:—

Financing of pensions for widows, etc., of teachers.

“For the purpose of supporting the said pensions, provision may be made—

- (a) for the payment to the Secretary of State by teachers of such contributions (which shall be separate from and additional to those provided for by section 105 of this Act) as may be prescribed; or
- (b) for the surrender or repayment to the Secretary of State of so much of the lump sums or death gratuities payable or paid, or of contributions returnable or returned, to or in respect of teachers as may be prescribed; or
- (c) for both such payment and such surrender or repayment.

Provision may be made for the return to a teacher or to his personal representatives, in such circumstances and subject to such conditions as may be prescribed, of the whole or a part of the contributions paid by him under provisions of the Teachers (Superannuation) Regulations giving effect to head (a) or head (c) of this paragraph, and for the payment, in such cases (if any) as may be prescribed, of compound interest on contributions so returned from such date, and at such rate, as may be prescribed.

Provision may be made for the payment by the Secretary of State of any sums received by him under provisions of the said Regulations giving effect to this paragraph either into the Exchequer or into a fund established for that purpose by the said Regulations, and for the exclusion of any such sums and of any expenditure of the Secretary of State under provisions of the said Regulations giving effect to this paragraph from the teachers superannuation account kept under section 107 of this Act.

The said Regulations may make such consequential, ancillary and incidental provisions as appear to the Secretary of State to be necessary or expedient for the carrying out of the purposes of this paragraph: ”.

(2) Accordingly, in the Education (Scotland) Act 1962, in sub-section (2) of section 107, for the words “ this Part of this Act ” there shall be substituted the words “ section 105 of this Act ”, and in paragraph 7 of Schedule 3 for the words “ this Act ” there shall be substituted the words “ section 105 of this Act ”.

Membership
of education
committees
and sub-
committees.
10 & 11 Geo. 6.
c. 43.

4.—(1) Nothing in section 125 of the Local Government (Scotland) Act 1947 (by virtue of which a person who holds any paid office or other place of profit in the gift or disposal of a local authority is, amongst other persons, disqualified for being a member of any committee or sub-committee of that authority) shall cause any person to be disqualified, by reason only of the fact that he is a teacher employed by an education authority, for being a member of the education committee of that authority or for being a member of any sub-committee of that committee.

(2) In section 109 (1) of the said Act of 1947 (which amongst other things lays down that in an administrative scheme of an education authority providing for the constitution of sub-committees for the management of educational establishments provision shall be made as set out in that section regarding the membership of such sub-committees), for the words “ Provision shall be made ” there shall be substituted the words “ Except to the extent that, in relation to the constitution of sub-committees for the management of educational establishments which are used or to be used for the provision of further education, the Secretary of State otherwise agrees, provision shall be made ”.

Expenses.

5. There shall be paid out of moneys provided by Parliament—

- (a) any expenditure incurred by the Secretary of State under this Act, and
- (b) any increase attributable to this Act in the sums payable out of moneys so provided under any other enactment.

Citation,
construction
and extent.

6.—(1) This Act may be cited as the Education (Scotland) Act 1963.

(2) The Education (Scotland) Acts 1939 to 1962 and this Act shall be construed as one, and those Acts and this Act may be cited together as the Education (Scotland) Acts 1939 to 1963.

(3) This Act shall extend to Scotland only.

